

In the
United States Court of Appeals
For the Eleventh Circuit

No. 23-13396

AMERICAN SECURITIES ASSOCIATION,
CITADEL SECURITIES LLC,

Petitioners,

versus

U.S. SECURITIES AND EXCHANGE COMMISSION,

Respondent,

THE NASDAQ STOCK MARKET, LLC,
NASDAQ BX, INC.,
NASDAQ GEMX, LLC,
NASDAQ ISE, LLC,
NASDAQ MRX, LLC, et al.,

2

Order of the Court

23-13396

Intervenors.

Petition for Review of a Decision of the
Securities and Exchange Commission
Agency No. 34-98290

ORDER:

Petitioners’ “Opposed Time-Sensitive Motion for Stay and Injunctive Relief” is DENIED . One member of the panel dissents and would grant the stay.

The motion of amici curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc. to file an amicus brief in support of Petitioners’ motion for a stay and injunctive relief is GRANTED.

DAVID J. SMITH
Clerk of the United States Court of
Appeals for the Eleventh Circuit

ENTERED FOR THE COURT - BY DIRECTION